DOJ election suits aim to create illegitimacy narrative

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Voters' corruption concerns look very 2006

DOJ election suits aim to create illegitimacy narrative. The Department of Justice faces essentially no pathway to success in its suit seeking to force Alaska to deny certification of its Senate election results if independent candidate Dan J. Sullivan receives enough votes to plausibly swing the election between Republican Dan S. Sullivan and Democrat Mary Peltola.

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Legal experts have widely panned the suit as baseless and borderline frivolous; it is likely to be tossed by a federal judge before the election next week.
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The issue the lawsuit cites—potential confusion between Republican Dan S. Sullivan and independent Dan J. Sullivan—has already been litigated in Alaska courts, which allowed both Sullivans on the ballot and clearly distinguished Dan S. Sullivan as the sole Republican nominee. Moreover, the ranked-choice nature of the race means that it is unlikely that any confusion between the Sullivans will be decisive.
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The DOJ's suit—along with another DOJ effort in California to force state election officials to separate out ballots of 20,000 voters it says may be noncitizens—are more geared toward creating a post-election narrative of illegitimacy than toward actually trying to block Democrats from taking power. Even as they, or other efforts to interfere with the election, face extremely long odds to success, the White House's willingness to open this can of worms indicates it intends to develop an election-stealing narrative in the weeks after the vote.
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President Donald Trump makes frequent claims of stolen elections; leaning into this narrative after the midterms will serve to lay the groundwork for mobilizing his base voters on this issue in 2028. We continue to view successful attempts to disrupt voting on election day or prevent the certification of

results as extremely unlikely, given the uniform failure of previous legal challenges to election results.

Rift with Ukraine will outlast resumed intelligence sharing. Trump is in the thrall of a long-shot peace deal between Russia and Ukraine; while the current fracture in US-Ukraine relations is unlikely to be permanent, it will persist through the coming winter and create substantial diplomatic hurdles for Kyiv.

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Trump's central preoccupation is not whether Ukrainian sovereignty is preserved or European allies are on board, but whether he is the one to close the deal to end the war. Trump gravitates toward whichever party appears to hold the stronger hand, a dynamic that does not always work towards Russia's favor. We expect him to pivot back to Ukraine eventually, though the relationship has suffered lasting damage.

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In our most likely scenario (60% odds) the US would continue sending defensive aid to Ukraine with some interruptions, and interceptor deliveries would be paused until at least after the next round of US-Iran escalation. Offensive support would likely be curtailed, as this is the easiest way for Trump to pressure Zelensky whenever negotiations appear likely.

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The best-case scenario for Ukraine is a repeat of the post-Alaska summit collapse in US-Russian engagement that pushed Trump toward Kyiv out of frustration with Putin (30% odds), while a worst-case scenario would see Trump blame GOP midterm losses on the failure to reach a deal, leading him to cut all assistance (10% odds).

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For more, please see Diplomatic fallout with Ukraine will persist beyond intelligence-sharing resumption , 23 October 2026.

Voters’ corruption concerns look very 2006. Corruption appears to be an increasingly important issue for midterm voters; On the back of a number of recent corruption scandals implicating Trump administration figures, CNBC found 36% of voters ranked “government corruption” as their top issue in the election.

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Voters ranking corruption as an important issue isn’t unusual; corruption nearly always scores highly when voters are asked to choose a number of issues important to their vote. It’s unusual, though, for voters to rank it so highly, and the CNBC poll isn’t alone in finding that its importance may have increased: a September Gallup poll found that 89% of voters believe corruption is “widespread throughout the government,” up from 73% in 2024.

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Even though a large chunk of concerns about corruption implicate the other party—voters tend to think that the other party, not their own, is corrupt—this perception isn’t good news for the incumbent, as it reflects broader concerns about the direction of government in the country.

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The last election that featured corruption concerns so prominently was the 2006 midterms, when a number of scandals associated with Republican politicians (including the House majority leader) tainted the Bush administration. Republicans lost big in the House that year. That historical pattern bodes poorly for Republicans in 2026, in line with our view that Democrats will likely win unified control of Congress next week.

Quote of the Day

“But I said, ‘I don’t give a damn, I’m gonna say it: We’re making a freaking fortune.’ Our country is getting stronger and stronger all the time, and those pump prices are gonna come down." - President Donald Trump at a rally in Georgia on Saturday. As Trump continues his rallies ahead of the midterms, he has tried to tout his administration's accomplishments to boost Republican votes. Gas prices and government corruption are key issues ahead of the election, but not in Trump's favor.

On the Radar

30-31 October: G20 Foreign Ministers' meeting

3 November: National midterm elections

9 November: Congress returns from recess

18-19 November: APEC leaders meeting in China

11 December: Government funding runs out

14-15 December: G20 summit in Florida

10 January: US-China tariff truce expires

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